Thus, the American principle of judicial review is adopted in Japan. But there is a difference. The American Supreme Court does not derive its power of judicial review from the Constitution, whereas the Japanese Supreme Court derives its power of judicial review directly from the Constitution. The Japanese Constitution specifically says that the Supreme Court is the court of last resort with power to determine the constitutionality of any law, order, regulation, or official Act.

7. Fundamental Rights The Japanese Constitution provides for rights on the model of the Bill of Rights in the USA. It guarantees a large number of civil, political and economic rights to the people of Japan and declares them as 'eternal and inviolate'. The judiciary headed by the Supreme Court acts as the protector of these rights through its power of judicial review.

The rights provided by the Japanese Constitution are more elaborate and definite than the American Bill of Rights. Out of a total of 103 Articles in the Constitution, 31 Articles (10 to 40) are devoted to the rights and duties of the people. The rights provided for in the Constitution are:

(i) Right to equality

(ii) Right to freedom

(iii) Right to freedom of religion

(iv) Right to private property

(v) Economic rights

(vi) Right to education

(vii) Cultural rights

(viii) Right to constitutional remedies

8. Renunciation of War The Japanese Constitution renounces war as a sovereign right of the nation and the threat or use of force as means of settling international disputes. It prohibits Japan from maintaining land, sea, and air forces, as well as other war potential. It also does not recognise the right of -belligerency of the state.

Japan is the only modern state which has constitutionally renounced war forever. It is the most peculiar as well as the most controversial feature of the Japanese Constitution. This provision was got inserted into the Constitution by General MacArthur to see that Japan would never again be allowed to act as a military nation as it did during the period of 1931 to 1945 and to abolish forever the power of Japan as a rival to the US in the far east. However, it does not mean that Japan cannot use arms and other forces for its security and defence. Like any other modern state, Japan has its defence capabilities but the term used is 'self-defence forces' to look constitutionally correct. They are justified on the ground that every state has an inherent right to defend itself against foreign aggression.

9. Bicameralism The Japanese Diet is bicameral, that is, it consists of two houses, namely the House of Councillors (upper House) and the House of Representatives (lower House). The House of Councillors consists of 252 members elected for a term of six years. Out of the total 252 members, 152 are elected on a geographical basis (local constituencies) and the remaining 100 are elected by the nation at large (national constituency). The House of Representatives consists of 512 members elected for a term of